



Office of
Deputy Commissioner of
Maritime Affairs

THE REPUBLIC OF LIBERIA

LIBERIA MARITIME AUTHORITY

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20 March 2026

Marine Advisory: 24/2025/Rev.1
(Supersedes: Marine Advisory 24/2025)

Subject: Issuance, Closure, and Extension of Statutory Dispensations issued to Liberian Flagged Vessels

The following changes have been included:

1. Revised requirements to follow upon receipt of a dispensation under 'Background and Issuance of Dispensations' to include revoking the dispensation for failure to implement the conditions in the dispensation and action that may be taken if a vessel is detained for failure to comply.

Dear Shipowner/Operator/Master/Recognized Organization:

The purpose of this Marine Advisory is to inform you of the Liberian Administration's latest policy regarding the issuance, closure and extensions of dispensations issued to Liberian flagged vessels. It also aims to provide increased flexibility through additional options for vessel owners and operators for closing dispensations.

In order to enhance safety of the ship, crew, protection of the marine environment; and to avoid undue delay in ports, the Administration has decided to address this with the following measures:

- a. The Administration will issue dispensation letters valid only until the next port of call.

The Shipowner/Operator/Master shall, as a minimum:

- Provide the Administration and hold onboard all supporting documents for the dispensation requested, e.g. formal risk assessment, a definitive corrective action plan and a firm confirmation with date for delivery of spare parts, service/attendance;
- File any dispensations along with all supporting documents with the port State authority prior to arrival at that port or in the case of an extended dispensation, prior to departure from the port; and strictly implement the conditions in the dispensation;
- Ensure timely rectification by exhausting all available sources for required spare parts, services or inspections;
- Closely follow the procedure for closing any dispensation.

- b. An extension for the minimum period required to rectify the deficiency, but not exceeding one (1) month, may only be granted if diligent attempts to rectify the deficiency/dispensation at that port have failed and the documentation under a. above have been provided.

Background and Issuance of Dispensations

International and Liberian national laws or regulations require that the condition of a vessel and its equipment shall be maintained in conformance with the provisions of the laws or regulations applicable to the vessel to ensure that the vessel in all respects remains fit to proceed to sea without danger to the vessel, the marine environment, or persons on board.

Whenever a vessel encounters a situation where the vessel does not fully comply with international or national laws or regulations; or an accident occurs to a vessel or a defect is discovered, either of which affects the safety of the vessel or the efficiency or completeness of its equipment, the owner/operator or the master/person in charge of the vessel shall report the non-compliance to the Administration at the earliest opportunity.

When circumstances prevent the immediate rectification of the non-compliance, the owner/operator of the vessel, or if applicable, the master/person in charge of the vessel, shall request issuance of a dispensation by the Administration. When requesting a dispensation, the owner/operator, or the master/person in charge of the vessel must submit to the Administration specific information regarding the details and circumstances concerning the non-compliance and all relevant supporting documentation demonstrating the nature of the deficiency and difficulties encountered in rectifying the non-compliance. In addition, the owner/operator, or the master/person in charge of the vessel shall provide a definitive corrective action plan to rectify the issue as expeditiously as possible.

After reviewing the submitted request, the Administration may issue a dispensation letter authorizing operation of the vessel until **its first port of call**. If the vessel is already in a port when the non-compliance is discovered, the owner/operator or the master/person in charge of the vessel must provide information on why the deficiency cannot be rectified at the vessel's current port.

Dispensations letters are issued with corrective action requirements and/or operational restrictions, are scrutinized by port State authorities worldwide and are challenged if there is lack of due diligence to adhere to conditions listed in the dispensation, to correct the issue or the non-compliance or if the dispensation has expired and is no longer valid. Accordingly, upon receipt of the dispensation, the following is required:

- a. Provide a copy of the valid dispensation to the port State authority along with all supporting documentation such as risk assessment, firm confirmation with date for delivery of spare parts, service/attendance.
- b. The vessel is to implement all the conditions within the dispensation during the validity period of the dispensation. Failure to implement the conditions may result in withdrawal of the dispensation and rectification at that port.
- c. The Company or Master is to revert by return in writing confirming that items (a.) and (b.) have been implemented.

A vessel detained for failure to comply with items (a.) and/or (b.) may be subject to additional measures or cancellation from the Registry.

The owner/operator or the master/person in charge of the vessel may also, when applicable, request issuance of a dispensation authorizing the extension of the due date for statutory certificate renewal

survey; or extension of the due date for a required annual/intermediate survey and/or inspection; or to allow short duration voyages with more persons on board than permitted by the issued statutory certificates; or fewer qualified crew members than required by the minimum safe manning certificate. Extension of dry-dockings and renewal surveys are to be kept to a minimum and will not be granted for more than one (1) month.

A copy of the dispensation will be provided to the vessel's classification society for information only and/or to instruct that a short-term statutory certificate should be issued. If the non-compliance also affects the validity of the certificate of class, the classification society may also impose additional requirements pending rectification of the non-compliance.

Closure of Dispensations

As previously noted, the owner /operator or the master/person in charge of the vessel is required to notify the Administration when the non-compliance is rectified and/or postponed surveys/inspections have been conducted to the effect that the vessel has regained full compliance with the applicable laws and regulations. Dispensation letters are issued with one of the following specific requirements for closure:

- a. Require inspection to close - Rectification of the deficiency or service of the item, as applicable, via a Liberian nautical inspector's report. If attendance by a flag State inspector has not already been scheduled for an inspection or audit at the time of closing, subject to prior agreement with the Administration, closure may be conducted by remote inspection.
- b. Require survey by the classification society – For items that affect the vessel's Safety Construction certificate and/or Class certificates, such as International Load Line Convention deficiencies; main propulsion machinery or auxiliary engine/generator deficiencies; steering gear; vessel hull and structural integrity; etc., a survey by a classification society surveyor will be required in order to close the dispensation.
- c. May be administratively closed without inspection.

In accordance with the specific closure method listed in the dispensation letter, the owner/operator or the master/person in charge shall notify the Administration of rectification of the non-compliance and/or completion of an outstanding survey/inspection and request that the dispensation be closed by providing documentary evidence either via:

1. a Liberian flag State inspector's report* or,
2. a classification society surveyor's report* or,
3. a service facility/technician's report if applicable, or
4. if the rectification was carried out by the ship's crew, a statement from the master and, if applicable, the chief engineer verifying the rectification of the deficiency and, as applicable, copies of purchase orders; proof of delivery of the needed item on board; pictures of the restored equipment; or video of the outstanding operation or drill shall also be provided.

*If attendance by a flag State inspector or a classification society surveyor, as applicable, has not already been scheduled for an inspection/audit or survey, subject to prior agreement with the Administration, closure may be conducted by remote survey/inspection.

Upon receipt and review of the documentary evidence, the Administration will close the dispensation and issue correspondence stating that the vessel has regained compliance with the applicable laws and/or regulations. The vessel's flag State records will be updated to show that the vessel is in compliance. A copy of the correspondence will be provided to the vessel's classification society (i.e. Recognized Organization) informing the classification society that any related outstanding statutory recommendations or deficiencies that may have been imposed by the classification society should be closed and, if applicable, authorize the reissuance of the full-term statutory certificate. Based on the Administrations correspondence, the vessel's class records will be updated to show that the vessel is in compliance.

The closure correspondence issued by the Administration will verify for port States and classification societies that the items of non-compliance have been rectified and that the vessel is in compliance with the applicable laws and/or regulations.

Extension of Dispensation

The Company and vessel should strive to rectify the deficiency and close the dispensation at the next port of call. If diligent attempts to rectify the deficiency at that port have failed, the dispensation may be extended for the period required to rectify the deficiency, in all cases, not to exceed a period of one (1) month from the date of departure from that port. Any request for an extension of the dispensation shall be made prior to its expiration to ensure that a valid dispensation is always maintained on board the vessel.

No additional fee may be charged for this extension.

Dispensation Fees:

Issuance and/or Extension of a Dispensation - \$250 USD

Verification of Closure of a Dispensation:

- 1) Verified via flag State inspector attendance during a scheduled annual safety inspection or audit-inspection/audit and closing dispensation fees are approved in advance by the vessel owner/operator. Classification society surveyor does not need to attend.
- 2) Verified by remote inspection conducted by the Administration - \$500 USD. Classification society surveyor does not need to attend.
- 3) Verified administratively by reviewing documents submitted by owner/operator or the master/person in charge of the vessel – No Fee. Classification society surveyor does not need to attend.
- 4) Verified via classification society surveyor attendance and report – surveyor fees are set by the classification society.

If the dispensation required issuance of a short-term statutory certificate, fees for re-issuance of the full-term statutory certificate are set by the cognizant classification society.

For questions regarding this note please contact this Administration's at email: Regsandstandards@liscr.com or via telephone number +1 703 790 3434.
